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Judgment Sheet
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.132000 of 2018
(Zain-ul-Abideen alias Zain. Vs. The State etc.)

JUDGMENT

Date of hearing: 01.08.2025

Appellant by: Mr. Hassan Raza Sheikh Advocate.
State by: Ms. Sumara Shafi, DDPP
Complainant by: Mr. Muhammad Akhtar Khan, Advocate

ABHER GUL KHAN, J. Pursuant to the filing of a complaint by the Punjab Food Authority alleging commission of offence under Sections 22-A and 24-A of the Punjab Food Authority Act, 2011, as amended by the Act of 2015 (hereinafter referred to as "**the Act of 2011**"), the learned Judicial Magistrate Section-30, Lahore took cognizance of the matter and proceeded to summon the appellant, Zain-ul-Abideen alias Zain. After the conclusion of trial proceedings, the learned trial court, *vide* judgment dated 15.05.2017, found the appellant guilty of the offence under Section 24-A of the Act of 2011, sentenced him to undergo simple imprisonment for a term of one month and also directed to pay a fine of Rs.100,000/-. Considering that the sentence of imprisonment awarded was less than one year, the learned Judicial Magistrate, while exercising discretion under Section 382-A, Cr.P.C. ordered postponement of the execution of the sentence so as to provide the appellant an opportunity to file an appeal, subject to his furnishing bail bonds in the sum of Rs.200,000/-. Feeling aggrieved by his conviction and sentence, the appellant preferred to file an appeal before the learned Additional Sessions Judge, Lahore. However, that appeal was dismissed

through judgment dated 21.12.2017 on the ground that it was not maintainable, as the forum approached lacked jurisdiction to entertain an appeal under the provisions of the Act of 2011.

2. Heard. File perused.

3. At the very outset, this Court has observed that the sentence upon the appellant was awarded under Section 24-A of the Act of 2011. In light of this, it becomes evident that the appellant, rather than filing an appeal before the Court of Sessions, should have approached this Court directly. This is because the appropriate legal remedy in such cases lies in filing an appeal under Section 45-A of the Act of 2011 and not before a subordinate forum. Therefore, any person aggrieved by a sentence or order passed under Section 24-A must file an appeal before this Court within the prescribed limitation period of thirty days. To facilitate clarity and understanding, Section 45-A of the Act of 2011 is reproduced below:-

“45A. Appeal against conviction.– (1) The Authority or the person sentenced by a Special Court may, within thirty days from the date of communication of the order, file an appeal against a final order of the Special Court to Lahore High Court.

(2) Save as provided in this Act or rules, no Court shall take cognizance or revise a sentence or transfer any case from a Special Court or make order under section 426, 491 or 498 of the Code or have jurisdiction of any kind in respect of any proceedings of the Special Court.”

From the above circumstances, a foremost legal question arises that whether the appellant’s choice to pursue his earlier remedy before an incorrect forum, which ultimately led to the dismissal of his appeal as not maintainable, can justify the filing of a fresh appeal before this Court beyond the statutory limitation period. In this regard, it is important to note with concern, that the appellant was convicted and sentenced by the learned Magistrate, Lahore on 15.05.2017 and instead of approaching this Court, as required under Section 45-A of the Act of 2011,

he filed an appeal before the Court of Sessions on 22.05.2017, a forum that did not have the jurisdiction to entertain such an appeal under the said Act. The appeal remained pending before the learned Additional Sessions Judge, Lahore for several months, and was ultimately dismissed on 21.12.2017 on the ground of being incompetent and not maintainable due to the lack of jurisdiction. Following that dismissal, the appellant filed the present appeal before this Court on 19.01.2018, once again challenging the original conviction dated 15.05.2017, as handed down by the learned Magistrate, Lahore. Along with this appeal, the appellant also submitted an application under Section 5 of the Limitation Act, 1908, seeking condonation of delay in filing the appeal before the appropriate forum. However, a significant procedural lapse on the part of the appellant is evident, who did not challenge or seek to set aside the judgment dated 21.12.2017 passed by the learned Additional Sessions Judge, Lahore, which dismissed his earlier appeal. Consequently, the earlier dismissal order remains intact and unchallenged, which may have implications on the maintainability and admissibility of the present appeal before this Court

4. This Court is mindful of the fact that the appellant's earlier appeal remained pending before the learned Additional Sessions Judge, Lahore for a period exceeding seven months. However, it is both surprising and unfortunate that during this entire duration, neither the appellant nor his legal counsel ever raised or addressed the crucial legal issue regarding the jurisdictional incompetency of the appellate forum and instead, they passively awaited a favorable outcome. Only after their efforts proved unsuccessful and the appeal was dismissed for want of jurisdiction, they chose to file the present appeal before this Court. While it is true that this Court, in the interest of

justice, often exercises discretion to condone delay in appeals filed by convicted persons, such condonation is not automatic nor is it a matter of routine practice. It is certainly not to be treated as a rigid or mechanical rule that applies in every case, regardless of circumstances. The condonation of delay, particularly in appeals against conviction must be considered if sufficient cause is demonstrated by the accused-appellant. The onus lies on the convict to present cogent, convincing, and reasonable explanations for the delay. Simply relying on the plea that the delay resulted from pursuing a remedy before an incorrect forum does not meet the approach required under the law. A mere procedural mistake, unless accompanied by *bona fide* reasons and supported by diligent conduct, cannot be considered a reasonable justification for the condonation of delay. In support of the above view, reliance is placed on the case reported as Rehmatullah v. Muhammad Ikram and 7 others (1999 MLD 1622). Although the said judgment pertained to an appeal against acquittal, yet the legal principle enunciated therein holds relevance to the present matter. The relevant excerpt from the afore-said judgment is as follows:-

“This Court affirmed the finding of the District Judge. In petition for special leave to appeal the Supreme Court held that prosecuting remedies before wrong forum hardly amounted to a bona fide mistake and did not constitute due diligence the essential requirement of section 14 of the Limitation Act. Similarly in another case titled Abdul Ghani v. Ghulam Sarwar (PLD 1977 SC 102) it was held that defence given by a lawyer that remedy in a wrong Court was prosecuted, is not a good ground for exclusion of time for limitation either under section 5 or section 14 of Limitation Act, 1908. In the case of Chaudhry Muhammad Sharif v. Muhammad Ali Khan and others (1975 SCMR 259) it was held that failure to acquaint himself with relevant provisions of law relating to jurisdiction of Court amounted to negligence on part of counsel and hence the delay was not condoned.”

5. In view of the foregoing discussion, this Court is not persuaded to find any sufficient or lawful justification for

condoning the delay in the filing of the present appeal. Even otherwise, the appellant cannot be allowed to take advantage of his own lapse, nor can the delay in filing the present appeal be excused merely on the basis of having earlier approached the wrong forum. Accordingly, the appeal suffers from a fatal defect of limitation, thus, is liable to be dismissed. Resultantly, the instant appeal along with Crl.Misc.No.1 of 2018 stands dismissed.

(ABHER GUL KHAN)
JUDGE

APPROVED FOR REPORTING

JUDGE

The judgment was
announced on
01.08.2025, dictated,
prepared and signed
on 05.08.2025.
Najum*
